

**CHAPTER xxxviii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dundee Water. A.D. 1911.
—
[29th June 1911.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Dundee Water Order Confirmation Act 1911. Short title.

A.D. 1911.

S C H E D U L E.

DUNDEE WATER.

*Provisional Order to empower the Dundee Water Commissioners
to extend enlarge and alter their Lintrathen Reservoir
and Works connected therewith and construct other Works
and for other purposes.*

WHEREAS the Dundee Water Commissioners (hereinafter called "the Commissioners") were incorporated by the Dundee Water Act 1869 (hereinafter called "the Act of 1869") and supply water to the burgh of Dundee and suburbs and places adjacent within the limits of supply and of compulsory supply as defined by that Act and extended by the Dundee Water Act 1882 (hereinafter called "the Act of 1882") the Dundee Water Act 1891 (hereinafter called "the Act of 1891") and the Dundee Water Order 1905 (hereinafter called "the Order of 1905"):

And whereas by the Act of 1891 the Commissioners were authorised to make and maintain an extension and enlargement of their reservoir commonly called or known as the Lintrathen Reservoir and other works in the parish of Lintrathen and county of Forfar described and numbered (1) to (10) inclusive in section 4 (Power to make works and take lands &c.) of that Act and the quantity of compensation water hitherto falling to be discharged out of and from the said reservoir for the supply of mills factories works lands buildings and others on the Rivers Melgum and Isla below the said reservoir and for the benefit of all parties interested in the water of the said rivers was reduced from fifteen to seven and one half cubic feet of water per second such reduction having been effected by purchase by the Commissioners:

And whereas after the passing of the Act of 1891 it was found that in consequence of the said reduction in the quantity of compensation water to be discharged out of and from the Lintrathen Reservoir as aforesaid the works hereinbefore mentioned and authorised by that Act were not immediately required and

the same have never been constructed and the powers granted for their construction by the Act of 1891 have lapsed and the power conferred by that Act to borrow money in so far as necessary for the construction of the said works has not been exercised : A.D. 1911.
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And whereas in consequence of the further extensions of the limits of supply and of compulsory supply granted by the Act of 1891 and the Order of 1905 and the greater demand existing for a supply of water by the Commissioners it has now become necessary to increase the capacity of their Lintrathen Reservoir and it is expedient for that purpose to authorise the Commissioners to acquire the lands and construct and maintain the works hereinafter described :

And whereas estimates have been prepared by the Commissioners for the purchase of lands and for the construction of the works by this Order authorised and such estimates are as follows :—

	£
Purchase of lands and servitudes - - -	9,000
Extension and enlargement of Lintrathen Reservoir - - - - -	10,300
Alterations of levels and raising and diversions of public carriage roads and alteration of bridge - - - - -	4,700

And whereas the said several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is also expedient that the Commissioners should be authorised to raise further money for the purposes of the works to be authorised by this Order and for the general purposes of their undertaking and to create and issue additional debenture stock in manner specified in this Order and that they should be further authorised to create and issue their debenture stock at such price or prices being not lower than ninety-five per centum and at such rate of interest as they may from time to time determine :

And whereas it is expedient that the further powers in this Order contained should be conferred on the Commissioners and that the other provisions in this Order contained should be enacted :

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And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited in the offices at Forfar and Dundee respectively of the principal sheriff clerk of the county of Forfar and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—

Division of
Order into
parts.

1. This Order is divided into parts as follows:—

Part I.—Preliminary.

Part II.—Works and Lands.

Part III.—Water Supply.

Part IV.—Finance.

Part V.—Appointment of Auditor.

Part VI.—Miscellaneous.

PART I.

PRELIMINARY.

Short title
and com-
mencement
of Order.

2. This Order may be cited for all purposes as the Dundee Water Order 1911 and shall come into operation at the date of the passing of the Act confirming the same which date is referred to in this Order as “the commencement of this Order.”

Citation of
Order and
Acts.

3. This Order and the Dundee Water Acts 1869 to 1905 may be cited together as the Dundee Water Acts 1869 to 1911.

Interpreta-
tion.

4. The several words and expressions to which by the Acts wholly or partly incorporated herewith meanings are assigned shall in this Order have the same respective meanings unless there be

something in the subject or context repugnant to such construction A.D. 1911.
And in this Order:—

“The Commissioners” shall mean the Dundee Water Commissioners incorporated by the Act of 1869;

“The Water Acts” shall mean the Dundee Water Acts 1869 to 1905;

“The water undertaking” shall mean the undertaking of the Commissioners under and authorised by the Water Acts;

“The sheriff” shall mean the sheriff of the county of Forfar and shall include his substitutes.

5. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order (namely):—

Incorporation of general Acts.

(1) The Lands Clauses Acts:

(2) The Waterworks Clauses Act 1847 except—

(a) Clauses 37 68 70 and 72;

(b) The clauses and provisions with respect to the communication pipes to be laid by the Undertakers;

(c) The clauses and provisions with respect to the amount of profit to be received by the Undertakers when the waterworks are carried on for their benefit:

(3) The Waterworks Clauses Act 1863:

(4) The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof:

Provided always as regards the said last-mentioned Act that the said clauses and provisions thereof shall be read so as to apply only to the extension and enlargement of Lintrathen Reservoir by this Order authorised and the works connected therewith and as if such extension and enlargement and works were therein referred to instead of “the railway” and as if the boundaries of the said extension and enlargement and works were therein mentioned

A.D. 1911. instead of "the centre of the railway" and as if the Commissioners were therein mentioned instead of "the Company":

Provided further that clause 37 (Supply of water to be kept for cleansing sewers drains &c. and for other public purposes) of the Waterworks Clauses Act 1847 incorporated with the Water Acts shall no longer be deemed to be incorporated therewith.

PART II.

WORKS AND LANDS.

Power to
make works.

6. Subject to the provisions of this Order the Commissioners may wholly in the parish of Lintrathen and county of Forfar make and maintain in the lines and situations and according to the levels and upon the lands delineated on the deposited plans and sections and described in the deposited book of reference the works hereinafter described and shown on the deposited plans and sections (that is to say):—

(1) An extension and enlargement (Work No. 1) of the reservoir of the Commissioners commonly called or known as Lintrathen Reservoir so as to increase the area thereof and raise the water therein four feet above the present top-water level thereof by adding to and increasing the height of the main embankment of the reservoir and of the waste weir and waste weir walls and other works thereof commencing such extension and enlargement at a point in the south corner of the field or enclosure No. 628 on the 25-inch Ordnance Survey Map (edition 1901) of the parish of Lintrathen and terminating at the said main embankment of the said reservoir:

(2) An alteration of the levels and raising of a portion of the public carriage road leading from Alyth by Milnacraig to and beyond Bridgend of Lintrathen (Work No. 2) commencing at a point in the said road ninety-three yards or thereby south-westward from the centre of the town's outlet upstand in the said Lintrathen Reservoir and terminating at a point in the said road one hundred yards or thereby south-eastward from the centre of the said outlet upstand:

- (3) A diversion of the said public carriage road (Work No. 3) commencing at a point in the said road three hundred and sixty yards or thereby and terminating at a point in the said road four hundred and fifty-seven yards or thereby north-eastward from the junction therewith of the road leading therefrom to Craigyloch : A.D. 1911.
- (4) A diversion of the said public carriage road leading from Alyth by Milnacraig to and beyond Bridgend of Lintrathen (Work No. 4) commencing at a point in that road five hundred and twenty yards or thereby north-eastward from the junction therewith of the road leading therefrom to Craigyloch and terminating at a point in the said public carriage road eighty yards or thereby south-westward from the south-west corner of the Corn and Meal Mill at Bridgend of Lintrathen :
- (5) A diversion of the public carriage road leading from Alyth by Bridgend of Lintrathen to and beyond Glenisla and crossing the north-east corner of the said reservoir of Lintrathen (Work No. 5) commencing at a point in that road six hundred yards or thereby and terminating at a point in that road one hundred and eighty yards or thereby south-westward from the south-west corner of the dwelling-house of Foldend Lintrathen :
- (6) An alteration of the levels and raising of a portion of the public carriage road leading from Kirriemuir to Glenisla (Work No. 6) commencing at a point in that road four hundred and twenty-seven yards or thereby and terminating at a point in that road one hundred and sixty-six yards or thereby south-eastward from the south-east corner of the dwelling-house of Inzion Lintrathen :
- (7) An alteration of the levels and raising of a portion of the public carriage road on the north-west side of Lintrathen Reservoir commonly called the road by Boghall or Boghall Road and hereinafter called "Boghall Road" (Work No. 7) commencing in that road where it joins the public carriage road from Kirriemuir to Glenisla at a point twenty yards or thereby southwards from the south-west corner of the

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farm steading of Inzion Lintrathen and terminating at a point in Boghall Road at or near the centre of the bridge commonly called Boghall Bridge carrying Boghall Road over the River Melgum:

- (8) An alteration of the levels and raising of a portion of Boghall Road (Work No. 8) commencing at a point in that road at or near the centre of the said bridge carrying the same over the River Melgum and terminating at a point in the said road eighty yards or thereby southward from the centre of the said bridge:
- (9) A diversion of the public carriage road on the west side of Lintrathen Reservoir sometimes and hereinafter called "Lochside Road" and of the continuation thereof leading northwards sometimes called the road by Kinloch or Kinloch Road and hereinafter called "Kinloch Road" (Work No. 9) commencing at a point in Kinloch Road one hundred and six yards or thereby southwards from the south corner of Kinloch Cottage and terminating at a point in Lochside Road three hundred and fifty-six yards or thereby south-westwards from the said south corner of Kinloch Cottage:
- (10) An alteration of the bridge commonly called Boghall Bridge carrying the said Boghall Road over the River Melgum (Work No. 10) by the substitution of iron beams and concrete slabs for the existing stone archways of the said bridge.

Power to
make
subsidiary
works.

7. In addition to the foregoing works and in connection therewith the Commissioners may upon or in the lands delineated on the deposited plans and described in the deposited book of reference make lay erect and maintain all such embankments dams weirs channels sluices catch-water drains culverts cuts aqueducts conduits tunnels bridges roads accesses approaches wells water towers overflows tanks cisterns gauges filter beds outlets and other works and conveniences or alterations of any existing works conduits aqueducts mains pipes or conveniences whatsoever in connection with the foregoing works or any of them or their existing waterworks as may be necessary or convenient in connection with or subsidiary to the foregoing works or any of them

or for effecting or carrying out the objects or purposes of this Order or any of them but nothing in this section shall exonerate the Commissioners from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any telegraphs telephones posts wires and other works made erected or maintained by the Commissioners shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1911.

8. In the construction of the works authorised by this Order the Commissioners may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoir three feet upwards and five feet downwards and in the case of other works three feet upwards and ten feet downwards Provided as follows (that is to say):— Limits of deviation.

The Commissioners shall not construct the embankment of the said Lintrathen Reservoir and the waste weir and waste weir walls thereof of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment waste weir and waste weir walls and three feet in addition.

9. For the purposes and during the execution of the several works which the Commissioners are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Commissioners may temporarily from time to time break up or cross over or under alter or stop up any highways roads lanes footways footpaths bridges drains watercourses water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such highway road lane footway footpath or bridge or the flow of water sewage or electricity or telephonic communication in any such drain watercourse pipe or apparatus and making full compensation to all persons injuriously affected Power to alter roads &c. temporarily.

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Reservoir to
be enclosed
by wire
fences.

10. The said extended and enlarged reservoir firstly before described shall in so far as not already so enclosed be enclosed by proper and sufficient wire fences and gates to be erected and maintained by the Commissioners.

Construction
management
and mainte-
nance of road
diversions.

11. The Commissioners shall construct the alterations of the levels and diversions of roads by this Order authorised as shown on the deposited plans and sections and every such road shall be solidly and well constructed and in connection with every such road the Commissioners at their own expense shall construct all necessary or proper side drains and culverts for carrying off the surface water and the Commissioners shall to the satisfaction of the surveyor to the county council of the county of Forfar properly fence off every such road and on the completion of the new or diverted roads the diverted portions of the roads shall as respects management and maintenance and in all other respects be held as part of and be subject to the same provisions as the existing portions of roads so diverted All the works referred to in this section shall be carried out to the satisfaction of the water engineer of the Commissioners and of the surveyor to the Forfar District Committee of the county council of the county of Forfar or in the event of their differing in opinion to the satisfaction of the road surveyor for the Highland District of Perthshire for the time being whom failing the road surveyor for the Dundee District of Forfarshire for the time being as sole arbiter.

On comple-
tion of road
diversions
site of exist-
ing roads
superseded
vested in
Commis-
sioners.

12. So soon as each road diversion by this Order authorised has been completed and opened to the public the Commissioners may stop up and extinguish all rights of way over the portion of the existing road between the points of commencement and termination of such diversion thereof hereinbefore described and the sites of the portions of the existing roads so stopped up and diverted so far as the same are or shall be respectively

bounded on both sides by lands of the Commissioners shall be and are hereby absolutely vested in the Commissioners freed and discharged from all public and other rights of way and all other rights charges interests and incumbrances then affecting the same. A.D. 1911.

13. Before any public road shall be opened or broken up for the purposes of this Order by the Commissioners they shall give to the persons under whose control or management such road may be or their clerk or surveyor notice in writing of their intention to open or break up the same six days at least before the commencement of such operation and every such road shall be opened or broken up under the superintendence of the persons so having the control or management of the same as aforesaid or their officer if such persons or their officer choose to attend. Notice to be served before breaking up public roads and roads to be broken up under superintendence.

14. When the surface or soil of any public road shall be opened or broken up by the Commissioners they shall with all convenient speed complete the work on account of which the same shall be opened or broken up and carry away the rubbish occasioned thereby and shall in the meantime cause the place where such surface or soil shall be so opened or broken up to be fenced and guarded and set up and maintain upon or against the part of the said surface or soil so broken up or opened a sufficient light during every night during which such surface or soil shall be continued open or broken up and shall after executing the work for or applicable to the roads which have been opened or broken up keep the same in good repair for twelve months thereafter. Roads broken up to be reinstated without delay.

15. If the Commissioners fail to give notice of their intention to open or break up any public road as hereinbefore required or shall open or break up any such road without having given such notice or shall make any delay in completing any such work or in carrying away the rubbish so occasioned as aforesaid or in causing to be fenced guarded or lighted the place where such surface shall have been opened or broken up they shall forfeit a sum not exceeding five pounds for every such offence and a further sum not exceeding five pounds for each day during which such delay shall continue. Penalty for failure to give notice and for delay in reinstating roads.

16. Subject to the provisions of this Order it shall be lawful for the Commissioners to collect intercept divert and take into Power to divert and impound waters.

A.D. 1911. and impound and store up in the said extended and enlarged Lintrathen Reservoir for the purposes of the undertaking of the Commissioners and of the Water Acts and this Order the waters of the Loch of Lintrathen and affluents thereof and of the River Melgum and affluents thereof and of the Inzion Burn and affluents thereof all in the county of Forfar in so far as not heretofore collected intercepted diverted and taken into and impounded and stored in the existing Lintrathen Reservoir and from thence by the existing undertaking and works of the Commissioners and the said intended works or one or more of them to use and appropriate the said several waters for an additional supply of water to the city and burgh of Dundee and suburbs and places adjacent and other places within the limits prescribed by the Water Acts and for the other purposes of those Acts and this Order and to provide compensation water to streams and persons whose present supply of water may be affected by or in consequence of the works authorised by this Order or any of them.

Access to
gauges.

17. The gauges which the Commissioners are required by section 16 (Gauges to be provided by the Commissioners) of the Dundee Water Extension Act 1871 to maintain for the purpose of ascertaining the actual quantity of compensation water passing out of their Lintrathen Reservoir for the supply of mills factories works lands buildings and others on the Rivers Melgum and Isla below the said reservoir and for the benefit of all parties interested in the water of the said rivers (which compensation water was by section 19 (Quantity of water to be discharged as compensation water) of the Act of 1891 reduced to and fixed at seven and one-half cubic feet of water per second) shall at all times be open to the inspection and examination of the Lord Provost magistrates and councillors of the city and royal burgh of Perth or of any person or persons duly authorised by them in that behalf.

Reservation
of water
rights on
sale.

18. The Commissioners on selling any lands acquired for or in connection with the purposes of this Order and not required to be retained for those purposes may subject to the provisions of the section of this Order of which the marginal note is "Limiting powers of Commissioners to abstract water" reserve to themselves all or any part of the water rights belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such

other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter or otherwise as they may think fit. A.D. 1911.

19. The Commissioners may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the extended and enlarged reservoir by this Order authorised with reference to the execution by the Commissioners or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Order authorised to be diverted collected and appropriated by the Commissioners flowing to upon or from such lands directly or derivatively into such reservoir and the other works of the Commissioners.

Power to
agree as to
drainage of
lands.

20. The sections hereinafter specified of the Act and Order hereinafter mentioned shall so far as applicable extend and apply mutatis mutandis to the extension and enlargement of Lintrathen Reservoir and the other works by this Order authorised and to that reservoir as so extended and enlarged and to the lands to be acquired by the Commissioners under the authority of this Order and to the Commissioners in respect thereof in the same manner as if the said sections had been re-enacted in this Order with reference thereto (that is to say):—

Application
of certain
sections of
Act of 1871
and Order of
1905.

Of the Act of 1871:—

Section 20 (Reservation of right of sporting on reservoirs to Earl of Airlie);

Section 21 (As to claims consequent on construction of works);

Section 22 (Supply of water to houses and buildings on the Earl of Airlie's estate);

Section 27 (Commissioners may draw off water for repairs and cleaning of reservoirs):

Of the Order of 1905:—

Section 9 (For protection of waterworks from pollution);

Section 10 (Power to agree for servitudes &c.);

Section 12 (Power to acquire and hold lands for protection of works and prevention of pollution).

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Byelaws for
preventing
pollution of
water.

21.—(1) The Commissioners may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to impound and take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

(2) The byelaws made under this section shall be in force within the areas from or through which the said waters flow or within so much of those areas as may be defined in the byelaws.

(3) All byelaws made under this section shall be subject to the approval of the local authority of every district comprising any part of the area within which it is proposed that they shall be in force. Provided that such consent shall not be necessary where in the opinion of the Local Government Board for Scotland it has been unreasonably withheld and any such local authority may apply to the Local Government Board for Scotland to cancel any byelaws made by the Commissioners and in force within its district and the said Board may cancel the same accordingly.

(4) The provisions as to byelaws to be made by a local authority contained in sections 183 to 188 of the Public Health (Scotland) Act 1897 shall apply to byelaws made by the Commissioners under this section.

(5) The Commissioners shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Lands Clauses Acts.

Lands may
be planted
with trees.

22. The Commissioners may plant with trees any lands or any portion of any lands belonging to them or which they may acquire under the powers of this Order in such manner as they may deem necessary or expedient for the purpose of protecting any of their reservoirs or existing waterworks or water supply against pollution fouling contamination or injury and such lands so planted as aforesaid shall not be deemed to be superfluous lands within the meaning of this Order or the Lands Clauses Acts respectively.

23. Subject to the provisions of this Order the Commissioners may enter upon take appropriate and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the works authorised by this Order.

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Power to
acquire
lands.

24. Whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Order it may happen that portions only of the properties shown on the deposited plans may be sufficient for the purposes of the Commissioners and that such portions may be severed from the remainder thereof without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the properties described in the First Schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Commissioners the portions only thereof so required without the Commissioners being obliged or compellable to purchase the whole or any greater portion thereof the Commissioners paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Owners may
be required
to sell parts
only of
certain pro-
perties.

25. All cases of disputed compensation in respect of land taken compulsorily under this Order or whereby any compensation falls under this Order to be determined under the provisions of the Lands Clauses Acts shall notwithstanding anything contained in those Acts be determined by a single arbiter to be appointed by the parties or in case both parties do not concur in the appointment of a single arbiter it shall be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall failing agreement and notwithstanding anything contained in those Acts determine the amount

Compensa-
tion to be
settled by
single
arbiter.

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Lands for
extraordi-
nary pur-
poses.

26. In addition to the other lands which the Commissioners are by this Order authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of their undertaking any lands not exceeding ten acres and they may on such lands erect or construct and hold depôts pipe yards wharves offices buildings sidings works and other conveniences in connection with their undertaking.

Limiting
powers of
Commis-
sioners to
abstract
water.

27. The Commissioners shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament.

Nuisance.

28. Nothing in this Order shall exonerate the Commissioners from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them for the purposes of their undertaking.

Period for
compulsory
purchase of
lands.

29. The powers of the Commissioners for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Period for
completion
of works.

30. If the works authorised by this Order are not completed within eight years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Commissioners for executing any works not so completed or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Commissioners from extending enlarging altering replacing increasing or removing any of their engines machinery conduits filter-beds aqueducts mains or pipes or improving their supply of water at any time and from time to time as occasion requires subject to the provisions of this Order.

New works
to form part
of water
undertaking.

31. Subject to the provisions of this Order the works to be constructed under the authority of this Order shall for all purposes be and be deemed to be part of the water undertaking and the provisions of the Water Acts shall be read and apply accordingly.

32. The following provisions shall have effect for the benefit and protection of the county council of the county of Forfar (in this section called "the county council") unless otherwise agreed in writing between the county council and the Commissioners:—

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—
For pro-
tection of
county
council of
Forfarshire.

- (1) The Commissioners shall at the date of the commencement of this Order pay to the county council for the Forfar District Committee thereof (herein-after in this section called "the district committee") the sum of eight hundred and seventy-five pounds which sum shall be accepted by the county council as in full satisfaction of all claims competent to the county council and the district committee so far as not otherwise specially provided for in this Order which sum shall bear interest at the rate of five pounds per centum per annum from the said date of payment till paid :
- (2) If at any time it appears to the county council or the district committee that having regard to the average expense of renewing maintaining or repairing the highways roads and bridges maintainable and repairable by them in the neighbourhood of any of the works authorised by this Order extraordinary expenses have been incurred by the county council or the district committee in renewing maintaining or repairing any of such highways roads or bridges by reason of excessive weight passing along the same or by extraordinary traffic thereon caused by or arising in consequence of the execution of any such works the Commissioners shall pay to the county council the amount of such extraordinary expenses and failing agreement as to the amount thereof the same shall be determined by the road surveyor for the Highland District of Perthshire for the time being whom failing the road surveyor for the Dundee District of Forfarshire for the time being as sole arbiter and his decision shall be final :
- (3) The Commissioners shall make full compensation to all persons (including the county council and the district committee) for all damage and injury losses and expenses whatsoever which they may from time to time sustain by reason or in consequence of the

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bursting or giving way of the reservoir of Lintrathen or other works by this Order authorised and of the flooding that may be thereby occasioned :

- (4) The Commissioners shall free and relieve the county council and the district committee from all claims for damages and expenses in respect of any accident which may occur owing to or arising from the state of the roads to be temporarily substituted for the existing roads while these are undergoing alteration.

PART III.

WATER SUPPLY.

As to supply
of water by
meter and by
agreement.

33. The Commissioners shall not be bound to supply any dwelling-house with water (otherwise than by meter or by special agreement) when any part of such dwelling-house is used by the same occupier for any trade or business purpose for which water is required.

Water
supplied for
domestic
purposes not
to be used
for other
purposes.

34. In addition to and without prejudice to the provisions contained in the Water Acts with regard to the misuse of water supplied by the Commissioners no person supplied by the Commissioners with water for domestic purposes shall use such water or suffer the same to be used for the purposes of affording power to or in connection with any machinery or apparatus whatsoever and every person offending against this enactment shall for every such offence forfeit and pay to the Commissioners a penalty not exceeding five pounds.

Penalty for
taking water
from public
wells except
for domestic
use.

35. Every person who takes water from any public fountain horse trough or stand pipe belonging to the Commissioners or any local authority and supplied with water by the Commissioners for any purpose other than domestic use or drinking unless under written agreement with the Commissioners shall for every such offence be liable to a penalty not exceeding five pounds.

Power to
sell or let
meters.

36. The Commissioners may from time to time sell and dispose of (but shall not manufacture) meters and any water fittings upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit and may let for hire any meters for ascertaining the quantity of water consumed or supplied and any water fittings for such remuneration in money and on such

terms and conditions with respect to the repair maintaining and protection of such meters and fittings and for securing safe access to and the safety and return to the Commissioners of such meters and fittings as may from time to time be agreed upon between the hirer and the Commissioners.

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37. Where water is supplied by measure the register of the meter shall be *primâ facie* evidence of the quantity of water consumed.

Register of
meter to be
primâ facie
evidence.

38. The Commissioners in addition to the powers conferred upon them by the Water Acts may re-washer any water fittings belonging to any person supplied by them with water and that either gratuitously or on payment of such charge as may be agreed on between the Commissioners and such person.

Power to
Commis-
sioners to
re-washer
water
fittings.

39. Before any person connects or disconnects any meter by means of which any of the water of the Commissioners is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Commissioners of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Commissioners and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
Commis-
sioners of
connecting
or discon-
necting
meters.

40. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Commissioners or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Commissioners shall (without prejudice to any other right or remedy for the protection of the Commissioners) be liable to a fine not exceeding five pounds and the Commissioners may in addition thereto recover the amount of any damage by them sustained :

Injuring
meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Commissioners or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same

A.D. 1911. from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Commissioners the Commissioners may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Commissioners by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Commissioners when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Tube or
hose not to
be affixed
to mains or
pipes with-
out consent
of Commis-
sioners.

41. It shall not be lawful for the owner or occupier of any house or premises supplied with water by the Commissioners without their written consent to affix or permit or suffer to be affixed any tube or hose to any of the mains or pipes of the Commissioners or to any service pipe or apparatus of such owner or any other owner or occupier for the purpose of washing horses carriages motor cars or other vehicles windows houses or buildings or for watering gardens or washing pavements or footpaths of roads or for any other purpose and the Commissioners may prohibit the same and without prejudice thereto any person who contravenes this enactment shall be guilty of an offence and shall for every such offence forfeit and pay to the Commissioners a penalty not exceeding forty shillings.

Supply of
water for
public pur-
poses.

42. In all the pipes to which any fire plug shall be fixed the Commissioners shall provide and keep constantly laid on unless prevented by frost unusual drought or unavoidable accident or during necessary repairs a sufficient supply of water for cleansing the sewers and drains and for cleansing and watering the streets and such supply shall be provided at such rates in such quantities and upon such terms and conditions as may be agreed upon between the Commissioners and the local authority requiring the supply or in case of disagreement as shall be settled by the sheriff.

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43. The Commissioners may supply water gratuitously or at such reduced charge as they may think fit for public baths and washhouses and for the purpose of cleansing or flushing courts and closes.

—
Supply of
water gratui-
tously or at
reduced
charge.

PART IV.

FINANCE.

44. In addition to any money which the Commissioners have borrowed or raised or are authorised to borrow or raise under the Water Acts or any of them the Commissioners may from time to time under the authority of this Order borrow or raise all such sums as may be requisite for the purposes of the Water Acts and of this Order and of their undertaking not exceeding the sum of fifty thousand pounds and with the sanction of and subject to the conditions as to period of repayment and otherwise prescribed by the Secretary for Scotland such further sums as may be requisite for the said purposes on the security of the revenues of the property and works forming their undertaking and of the several rates and charges leviable by them under the provisions of the Water Acts and this Order and if after having borrowed or raised any moneys under the authority of this section the Commissioners pay off the same or any part thereof by other means than by the sinking fund herein-after provided it shall be lawful for them again to borrow or raise the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time.

Power to
borrow
additional
money.

45. In order to raise such money as may be necessary to defray the current annual expenditure for the water undertaking until the several rates and charges leviable by the Commissioners shall be levied and collected the Commissioners may borrow during the currency of any financial year (in addition to the other sums authorised to be borrowed) on the security of such rates and charges and the other revenues of the water undertaking in such way and manner as they may deem most expedient any sum or sums not exceeding in the whole two-third parts of the estimated amount of such rates charges and revenues for the year then current from any bank or banking company or other company or person on such terms and conditions and in such form as may be agreed on between the parties Provided always that such sums so borrowed shall be paid off and extinguished at or before the end of the financial year to which such borrowing applies.

Borrowing
power for
current
expenses.

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Security for
borrowed
money.

46. All moneys to be borrowed or raised by the Commissioners after the commencement of this Order may be secured by bonds in terms of and as provided by this Order or by debenture stock of the Commissioners in terms of and in manner provided by the Act of 1882 as altered and amended by section 39 (Issue of redeemable water debenture stock) of the Dundee Corporation Act 1894 and all the powers forms and provisions of the Act of 1882 as altered and amended as aforesaid with regard to the raising of money by the creation and issue of debenture stock and with regard to the debenture stock or certificates of debenture stock to be created and issued therefor shall mutatis mutandis apply to the money raised by the Commissioners by the creation and issue of debenture stock after the commencement of this Order and to all debenture stock or certificates of debenture stock created and issued for the same or any part thereof and to the transfer transmission and redemption of such debenture stock. Provided that the bonds to be granted and certificates of the debenture stock to be issued for the moneys by this Order authorised to be borrowed or raised shall declare that they are so granted and issued by virtue or by and under the powers of this Order.

Bonds by
Commis-
sioners.

47. Notwithstanding anything in the Water Acts contained all bonds to be made and granted by the Commissioners for moneys borrowed by them from and after the commencement of this Order under the Water Acts or this Order shall be signed by three of and the treasurer to the Commissioners and may be in the form and tenor contained in the Second Schedule to this Order or to the like effect.

Bonds may
be accom-
panied with
interest
warrants.

48. The Commissioners may issue along with any such bond and during the period of any postponement of the term of payment thereof interest warrants in the form contained in the Third Schedule to this Order or to the like effect signed by the treasurer to the Commissioners for the periodical payment of the interest to become due on the principal sums thereby secured during the period for which such bond is intended to subsist and the delivery to the Commissioners or their treasurer or to any person on their behalf of any such interest warrant duly stamped as a receipt shall be a valid and sufficient discharge to the Commissioners for the interest in respect of which the same was issued.

Mortgages
or bonds
may be

49. All mortgages and bonds granted by the Commissioners under the authority of the Water Acts or this Order may be

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transferred by endorsation on the back thereof in the form and tenor contained in the Fourth Schedule to this Order or to the like effect.

transferred
by indorse-
ment.

50. Any person entitled to any mortgage or bond granted by the Commissioners under the authority of the Water Acts or this Order may discharge the same and his right and interest therein in favour of the Commissioners and every such discharge may be endorsed on the mortgage or bond and may be in the form and tenor contained in the Fifth Schedule to this Order or to the like effect and such discharge when signed by the person entitled to such mortgage or bond and duly stamped shall be valid and effectual to all intents and purposes.

Discharge of
bonds.

51. The sections herein-after specified of the Acts herein-after mentioned shall be and are hereby made applicable mutatis mutandis to the money to be borrowed or raised by the Commissioners under the authority of this Order and to the bonds interest warrants transfers of bonds drafts or orders and discharges to be granted in respect thereof in the same manner as if the said sections had been re-enacted in this Order with reference thereto (that is to say):—

Provisions of
Act of 1869
and Order of
1905 made
applicable.

Of the Act of 1869:—

Section 68 (Commissioners may borrow on credit of a cash account);

Section 69 (Manner in which mortgages and orders on bank account to be signed and executed) so far as not inconsistent with the provisions of this Order;

Section 70 (Commissioners may fund debt and issue certificates of funded debt);

Section 71 (Register of holders of funded debt to be kept);

Section 72 (Transfer of funded debt);

Section 73 (Annuity to be paid);

Section 74 (Security of holders of funded debt);

Section 75 (Arrears may be enforced by appointment of factor);

Section 76 (Powers and duties of judicial factor);

Section 77 (Mortgages and funded debt to be personal estate):

A.D. 1911. Of the Order of 1905:—

Section 30 (Estimates to be made up by Commissioners);

Section 32 (Application of borrowed money);

Section 33 (Protection of lenders from inquiry).

Bonds to be
recorded and
transfers to
be regis-
tered.

52. There shall be kept at the office of the clerk to the Commissioners a register of all bonds to be made and granted by the Commissioners for moneys borrowed by them from and after the commencement of this Order under the Water Acts and this Order and within fourteen days after the date of every such bond an entry shall be made in the register of the number and the amount and date thereof and of the names and designations of the parties thereto as stated in the bond and also the interest payable on the same. Every such register shall be open to public inspection during office hours at the office of the said clerk without fee or reward and any clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds. Before any bond is delivered to the creditor a certificate of such entry shall be endorsed on the bond and signed by the clerk to the Commissioners and every transfer of a bond shall be notified to such clerk who shall enter in the register aforesaid the date of the transfer the names of the parties thereto the number of the bond and the date it was notified or intimated and a certificate of such entry shall be endorsed on the said bond and signed by the treasurer to the Commissioners and such clerk and the said bond being so certified the transferee his executors and assignees shall thereafter be entitled to the benefit of such bond in terms of such transfer.

Priority of
existing
annuities
mortgages
and debenture
stock.

53. All annuities created and issued under the Act of 1869 and all mortgages granted and debenture stock created and issued by the Commissioners in pursuance of the Water Acts before the commencement of this Order which shall be subsisting at the commencement of this Order shall during the continuance of such annuities mortgages and debenture stock have priority over any bonds to be granted and debenture stock to be created and issued after the commencement of this Order and all such last-mentioned bonds and debenture stock shall rank together *pari passu* and without any preference or priority the one over the other.

Application
of rates and
charges.

54. Notwithstanding anything in the Water Acts contained the rates and charges levied or leviable under the authority of the Water Acts and this Order and the other income of the Com-

missioners whether arising under the Water Acts or this Order shall be applied in the following order of priority (that is to say):— A.D. 1911.

Firstly In defraying the expenses of the management and maintenance of the undertaking of the Commissioners under the Water Acts and this Order including the salaries and other payments to the officers and servants of the Commissioners and the annual costs charges and expenses of providing and supplying water and in payment of any feu duties and ground annuals and other annual payments exigible in respect of any lands streams or property forming part of the said undertaking;

Secondly In payment of the perpetual annuities by section twenty-four of the Act of 1869 required to be paid and of the interest on any moneys not exceeding in the whole the sum of eighty thousand pounds now or hereafter borrowed or raised under the authority of that Act;

Thirdly In payment of the interest of money which may have been or may be borrowed or raised under the authority of the Water Acts other than the Act of 1869 and this Order or any of them;

Fourthly In payment of the sums by this Order directed to be set apart as a sinking fund; and

Lastly In payment of such portion of the cost of enlarging or increasing or renewing the number of mains and pipes and of extending the works mains and pipes from time to time as may properly be charged against the revenue for the year and of any other necessary annual expenditure.

55. From and after the fifteenth day of May one thousand nine hundred and eleven the Commissioners shall set apart annually as a sinking fund a sum equal to the aggregate amount of—

Sinking
fund for
redemption
of annuities
and moneys
borrowed
or raised.

(1) One per centum on the amount capitalised at twenty-eight years' purchase of the Dundee water annuities created and issued under the Act of 1869:

(2) One per centum on the amount of money borrowed or raised by them under the authority of the Water Acts and outstanding at the said date and on the amount borrowed or raised by them subsequent to the said date under the authority of the Water Acts or this Order but excluding from such last-mentioned amount any

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moneys borrowed or raised to defray the costs of this Order or borrowed or raised with the sanction of the Secretary for Scotland as herein-before in this Order provided :

- (3) A sum equivalent to the interest (calculated at not less than three per centum per annum) on the whole sums so set apart up to the close of the preceding year including the moneys set apart by the Commissioners as a sinking fund under the Water Acts before the commencement of this Order :

And the said sinking fund shall pending its application in redemption of the water annuities or in paying off money borrowed or raised be invested in or on any security in or on which trust funds may be invested according to the law of Scotland or by way of deposit in any of the banks in Scotland incorporated by royal charter or by or under the provisions of any Act of Parliament and the income derived from the sums so invested may be applied towards the payments falling to be made to the sinking fund under (3) of this section.

Application
of sinking
fund.

56. The Commissioners may at any time and from time to time apply the whole or any part of the sinking fund herein-before provided including any unapplied balance of the moneys set apart as a sinking fund before the commencement of this Order in or towards redeeming or paying off the Dundee water annuities and the mortgages or bonds granted under the Water Acts and this Order and the debenture stock created and issued under the Act of 1882 the Act of 1891 the Order of 1905 and this Order or any of them and to no other purpose whatsoever.

Amendment
as regards
Dundee
water debenture stock.

57. Notwithstanding anything in the Water Acts contained the Commissioners may in the exercise of the powers thereby and by this Order conferred for the creation and issue of debenture stock for moneys borrowed or to be borrowed by them under the powers of those Acts and this Order create and issue such debenture stock at such price or prices being not lower than ninety-five per centum and at such rate of interest being the same as or different from the price or rate of interest of any other issue of the said debenture stock as may from time to time be determined by the Commissioners and fixed by the resolution creating the same and the provisions of the Water Acts relating to the creation and issue of the said debenture stock are hereby amended accordingly.

PART V.

A.D. 1911.

APPOINTMENT OF AUDITOR.

58. The Secretary for Scotland shall prior to the first day of May in every year appoint an auditor who shall be a member of one of the incorporated societies of accountants in Scotland and practising in the city of Dundee for the purpose of auditing the accounts of the Commissioners and in case of dispute shall on the application of either party fix the fee to be paid to such auditor and in the event of the office of such auditor becoming vacant by death or from any other cause before such accounts are audited by him shall subject to the like incidents appoint an auditor to supply such vacancy.

Appoint-
ment of
auditor.

59. The Commissioners shall from time to time give to the auditor full access to all their accounts together with their books and vouchers and it shall be the duty of the auditor to audit such accounts and either make a special report thereon in any case where it appears to him expedient so to do or simply confirm the same. Provided that the auditor shall make a special report in every case where he is of opinion that any statutory or other requirement with respect to the repayment or extinction of debt has not been observed or that any debt has not been duly repaid.

Auditor to
have full
access to
accounts &c.

60. The yearly accounts as the same shall have been audited shall be laid before a meeting of the Commissioners to be held not later than the first week of July in each year and the auditor's confirmation or special report shall be read at such meeting and the accounts shall be examined and if found just and true shall be allowed and certified by the Commissioners under the hand of the chairman of such meeting and of the clerk and treasurer and shall thereafter be final in regard to all persons whomsoever unless an appeal be presented against such accounts to the sheriff within three months from the date of such meeting which appeal it shall be competent for any Commissioner or for any holder of a Dundee water annuity or annuities or for any creditor holding a security on the undertaking or for any ratepayer in Dundee to institute and prosecute due notice in writing of such appeal having been given to the clerk at the time of presenting the same by leaving with him a copy thereof and of the reasons of appeal and the sheriff shall dispose of the said appeal in a summary way and his decision thereon shall be final.

Accounts to
be laid be-
fore meeting
of Commis-
sioners.

A.D. 1911. and conclusive and not subject to review on any ground or by any process whatsoever.

Abstract of accounts to be printed and circulated.

61. As soon as the said accounts shall have been allowed and certified by the Commissioners as aforesaid an abstract thereof shall be prepared and together with the auditor's report shall be printed and circulated for the information of the Commissioners on or before the first day of September in each year and one of the said copies shall be open to the inspection of the public at the offices of the Commissioners for the time being at all reasonable hours and any person may obtain a copy on payment of the sum of one shilling.

PART VI.

MISCELLANEOUS.

Agreement with Lord Airlie confirmed.

62. Subject to the provisions of this Order the agreement between the Right Honourable David Lyulph Gore Wolseley Ogilvy Earl of Airlie with the special advice and consent of his curators and the Commissioners dated the sixth sixteenth twenty-first and twenty-second days of April one thousand nine hundred and eleven as set forth in the Sixth Schedule to this Order is hereby confirmed and shall be carried into effect by the parties thereto respectively.

Acquisition by Commissioners of rights of Earl of Airlie in or over Lintrathen Reservoir.

63. The Commissioners may by agreement purchase and acquire from the Right Honourable David Lyulph Gore Wolseley Ogilvy Earl of Airlie and his curators the exclusive right of fishing shooting and sporting in or over the Commissioners' Lintrathen Reservoir and of keeping and using boats thereon for the purposes aforesaid and of taking ice therefrom reserved to or conferred on the Right Honourable David Graham Drummond Ogilvy Earl of Airlie and his heirs and successors in the lands and barony of Lintrathen by section 20 (Reservation of right of sporting on reservoirs to Earl of Airlie) of the Act of 1871.

Public water rate increased.

64. From and after the fifteenth day of May one thousand nine hundred and eleven section 46 (Public water rate to be levied) of the Act of 1869 shall be read and have effect as if twopence had been therein inserted in place of one penny and the limits of compulsory supply mentioned in the said section shall be the limits of compulsory supply specified in the Act of 1869 as extended by the Act of 1882 the Act of 1891 and the Order of 1905.

65. From and after the commencement of this Order the sections herein-after specified of the several Acts and Order herein-after mentioned shall be and are hereby repealed (that is to say) :—

A.D. 1911.
Repeal of
certain
sections of
former Acts
and Order.

Of the Act of 1869 :—

Section 18 (Auditor to be appointed);

Section 63 (Application of rates);

Section 66 (Form of mortgage);

Section 67 (Mortgages may be accompanied with interest warrants); and

Section 78 (Discharge of mortgages):

Of the Act of 1871 :—

Section 33 (Application of rates and charges):

Of the Act of 1874 :—

Section 20 (Application of rates and charges):

Of the Act of 1882 :—

Section 23 (Application of rates and charges):

Of the Act of 1891 :—

Section 35 (Application of rates and charges);

Section 38 (Sinking fund); and

Section 39 (Application of sinking fund):

Of the Order of 1905 :—

Section 31 (Application of rates and charges);

Section 34 (Sinking fund for redemption of mortgages and debenture stock &c.);

Section 35 (Application of sinking fund); and

Section 36 (Sinking fund for redemption of annuities &c.).

66. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Commissioners out of their funds and revenues or out of moneys to be borrowed or raised under the authority of the Water Acts or this Order. Provided that if such costs charges and expenses are paid out of moneys so borrowed or raised the amount thereof shall be repaid out of such revenues within five years from the commencement of this Order.

Costs of
Order.

A.D. 1911.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

PROPERTIES WHEREOF PARTS ONLY ARE REQUIRED TO BE TAKEN.

Parish.	Numbers on Deposited Plans.													
Lintrathen - -	21	25	25a	26a	27a	28a	30	41	42	42a	48	54	55	
	65	66	66	68	68	71	72	72	73	75	75	75	89	
	90	91	92	93	95	97	97	97	97	99	99	99	99	

THE SECOND SCHEDULE.

FORM OF BOND.

No.

£

By virtue of the Dundee Water Acts 1869 to 1911 We the Dundee Water Commissioners incorporated by the Dundee Water Act 1869 in consideration of the principal sum of (*insert sum in words*) instantly advanced and paid to us for the purposes of the said Acts by (*insert full name and designation*) do hereby bind and oblige ourselves out of the several rates and charges leviable by us under the provisions of the said Acts and the other revenues of our undertaking to pay at the term of (*insert term of payment*) to the said (*insert full name*) his executors administrators or assignees the said principal sum of (*insert the sum in words*) and also the interest thereof at the rate of (*insert rate of interest*) per centum per annum from _____ at the terms of Whitsunday and Martinmas in each year till the said principal sum is paid and for the further security of the said (*insert full name*) we do hereby assign to him his executors administrators and assignees such proportion of the said several rates charges and revenues as shall be equivalent to the said principal sum now paid to us and the interest thereon as aforesaid from _____ to the term of payment And we consent to the registration hereof for preservation and execution In witness whereof (*insert testing clause in common form*).

Witness.

Commissioner.

Witness.

Commissioner.

Commissioner.

Treasurer.

THE THIRD SCHEDULE.

A.D. 1911.

FORM OF INTEREST WARRANT.

Dundee Water.

Bond No.

Dated

19

Interest Warrant.

For

pounds

shillings and

pence

£ s. d.

Less income Tax

-

-

-

-

£

Payable on

19

at the

Treasurer.

THE FOURTH SCHEDULE.

FORM OF TRANSFER.

I A.B. within designed do transfer this Bond with all right title or interest which I have under the same to C.D. (*insert full name and designation*) his (*or her or their as the case may be*) executors administrators and assignees In witness whereof (*insert testing clause in common form*).

Witness.

A.

B.

Witness.

THE FIFTH SCHEDULE.

FORM OF DISCHARGE.

Received from the Treasurer to the Dundee Water Commissioners acting on their behalf the sum of being the principal sum contained in the within Bond (all interest due thereon having been previously paid) and the said Bond is now delivered up as discharged

Dated this

day of

one thousand nine hundred and

A.

B.

A.D. 1911.

THE SIXTH SCHEDULE.

AGREEMENT between the Right Honourable DAVID LYULPH GORE WOLSELEY OGILVY Earl of Airlie proprietor of the lands and estates of Lintrathen and others in the county of Forfar acting with the special advice and consent of the Right Honourable Arthur Jocelyn Charles Gore Earl of Arran &c. formerly Viscount Sudley the Honourable George Leopold Bryan of Jenkinstown Park Kilkenny Ireland sometime of the Tenth Hussars and his mother the Right Honourable Mabell Frances Elizabeth Countess of Airlie curators nominated and appointed to him by his father the Right Honourable David William Stanley Ogilvy Earl of Airlie (now deceased) conform to Deed of Nomination by the said David William Stanley Ogilvy Earl of Airlie dated the thirtieth day of January eighteen hundred and ninety-three and registered in the Books of Council and Session on the ninth day of July nineteen hundred of the first part and herein-after referred to as the first party and the DUNDEE WATER COMMISSIONERS incorporated by Act of Parliament of the second part and herein-after referred to as the second parties.

WHEREAS the second parties hereto and the late David Graham Drummond Ogilvy Earl of Airlie a predecessor in title of the first party hereto entered into an agreement dated thirty-first March and third April eighteen hundred and seventy-one scheduled to and confirmed by the Dundee Water Extension Act 1871 and into another agreement dated fifteenth March eighteen hundred and seventy-two scheduled to and confirmed by the Dundee Water Amendment Act 1872 And whereas the said late David William Stanley Ogilvy Earl of Airlie the immediate predecessor in title of the first party hereto entered into an agreement with the second parties hereto dated third and sixth March eighteen hundred and ninety-one scheduled to and confirmed by the Dundee Water Act 1891 And whereas the second parties have applied to the Secretary for Scotland for a Provisional Order (herein-after called "the Order") under the Private Legislation Procedure (Scotland) Act 1899 to empower them to extend enlarge and alter their Lintrathen Reservoir and works connected therewith and construct other works and for other purposes

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and have deposited a draft of the Order with the Secretary for Scotland in terms of said Act And whereas by the said deposited draft Order the second parties propose subject to the provisions of the Order inter alia to make and maintain an extension and enlargement of said Lintrathen Reservoir so as to increase the area thereof and raise the water therein four feet above the present top-water level thereof by adding to and increasing the height of the main embankment of the reservoir and of the waste weir and waste weir walls and other works thereof and to make and execute certain other works including diversions and improvement of roads following upon and rendered necessary by said extension and enlargement of said reservoir and also subject to the provisions of the Order to collect intercept divert and take into and impound and store up in the said extended and enlarged Lintrathen Reservoir for the purposes of the undertaking of the second parties and of their Water Acts and the said Order the waters of the Loch of Lintrathen and affluents thereof and of the River Melgum and affluents thereof and of the Inzion Burn and affluents thereof all in the county of Forfar in so far as not heretofore collected intercepted diverted and taken into and impounded and stored in the existing Lintrathen Reservoir And whereas by the said deposited draft Order the second parties also propose subject to the provisions of the Order to acquire power compulsorily or by agreement to enter upon take appropriate and use such of the lands delineated on the deposited plans and described in the deposited book of reference as might be required for the purposes of the Order And whereas by section twelve of the Dundee Water Order 1905 (which section it is inter alia proposed in the said draft Order shall so far as applicable extend and apply mutatis mutandis to the extension and enlargement of Lintrathen Reservoir and the other works thereby proposed to be authorised and to that reservoir as so extended and enlarged and to the lands proposed to be acquired by the second parties under the authority thereof and to the second parties in the same manner as if the said section were re-enacted in the Order with reference thereto) it is enacted that “the Commissioners may by
“ agreement purchase acquire and hold any lands within the drainage
“ area of the works by this Order authorised or acquire servitudes or
“ restrictions over or acquire by lease for such period of years as they
“ may think fit any such lands which may in their opinion be necessary
“ or desirable for the purpose of securing the purity of the water in the
“ drainage area of the waterworks of the Commissioners and of protecting
“ their water supply against pollution nuisance encroachment or injury
“ and so long as such necessity shall continue such lands to be acquired
“ shall not be deemed to be superfluous lands within the meaning of
“ the Lands Clauses Acts provided that the Commissioners shall not
“ create or permit any nuisance on the lands which may be so acquired
“ and shall not erect or permit the erection of any buildings on such

A.D. 1911. — “lands except such as are required in connection with their water-works undertaking or for farm buildings” And whereas with a view of settling the prices to be paid for certain lands and others all lying in the parish of Lintrathen and county of Forfar to be acquired by the second parties from the first party for the purposes aforesaid and the terms and conditions upon which the said lands and others shall be so acquired the parties hereto have agreed as under written (that is to say) the parties hereto do hereby subject to the sanction of Parliament being obtained to the Order agree and bind and oblige themselves and himself respectively as follows viz.:—

First. The second party shall pay to the first party the following sums or at the rates following as prices of lands and other property to be taken and acquired by the second parties under the powers and for the purposes of the Order viz. (First) The sum of seventy-five pounds per acre as and for the full and fair worth and value of all arable and waste lands shown and coloured pink on the plan signed as relative hereto (including the sites of houses buildings and erections situated on said lands) but excepting one acre or thereby of the said lands forming the beds of the Melgum and Inzion Burns as shown and coloured red on the said plan and for the said one acre or thereby at the rate of thirty-seven pounds ten shillings per acre Declaring that the sporting rights over the said land coloured pink and red are reserved by the first party (Second) The sum of fifty pounds per acre as and for the full and fair worth and value of all arable and waste lands shown and coloured purple on the said plan Declaring that the first party and his heirs and successors in the lands and barony of Lintrathen and his and their guests shall have the right and privilege of shooting and sporting over the said land coloured purple (Third) The sum of thirty-seven pounds ten shillings per acre as and for the full and fair worth and value of all arable and waste lands shown and coloured green on the said plan but excluding the wood or timber on said lands coloured green which wood or timber shall be paid for at valuation as after provided (Fourth) The sum of thirty-seven pounds ten shillings per acre as and for the full and fair worth and value of the lands and others shown and coloured yellow on the said plan together with the wood or timber thereon and (Fifth) The sum of three thousand eight hundred pounds for the farm of Inzion and others shown and coloured blue and brown on the said plan and for the farm steading and whole houses buildings and erections situated on said farm and upon the lands comprised in head (First) hereof.

Second. The measurements of the whole lands and other property to be taken and acquired as before specified shall be made by George

Baxter civil engineer Dundee the engineer of the second parties and shall include the areas or sites of the houses buildings and erections on such lands and shall also include the areas of all roads belonging to the first party other than public roads and a plan of the said lands and other property with a statement of such measurements shall be furnished by the second parties to the first party who shall be entitled to check the said measurements at the cost and expense of the second parties The worth and value of the wood or timber on the said lands shown and coloured green on the said plan signed as relative hereto shall in the event of the parties not agreeing as to same be fixed and determined by James Crabbe forester to the Earl of Strathmore at Glamis. A.D. 1911.

Third. The sums or prices before mentioned or to be ascertained in accordance herewith (including the worth and value of the said wood or timber immediately above referred to) shall be paid by the second parties to the first party at the date of the passing of the intended Act confirming the said Provisional Order (which date shall be the period of the second parties' entry to the subjects) and shall bear interest at the rate of five per cent. per annum until actual payment.

Fourth. The first party shall (subject to the reservation after written) accept of the foresaid agreed-on payments in full of the worth and value aforesaid and of all claims and demands at his instance or which might arise to him under the Order or the compulsory taking of the foresaid lands and other property for the purposes of the works at Lintrathen contemplated by the Order but always under reservation and reserving to the said Earl and his successors as proprietors of the lands adjoining the foresaid lands his and their claims for any damage which may be caused to the drainage of the adjoining lands by or arising out of the execution of the works contemplated by the Order or the taking of the said lands or any of them or otherwise.

Fifth. In exchange for the said sums or prices and interest thereon the first party shall grant in favour of the second parties a formal and valid conveyance of the subjects to be acquired in terms hereof containing all usual and necessary clauses as these may be adjusted between the parties including a clause of absolute warrandice but excepting from said warrandice current leases and missives of lease and particularly a lease dated the eighth and twenty-second days of March nineteen hundred and ten in favour of Hubert Arthur Cox esquire of number sixteen Charing Cross London of the shootings over inter alia the foresaid subjects for the space of ten years from and after the term of Whitsunday nineteen hundred and ten with break at the term

A.D. 1911.

of Whitsunday nineteen hundred and seventeen in favour of either landlord or tenant upon the party desiring to terminate the same giving to the other party one year's notice of his intention so to do.

Sixth. The first party shall in the said conveyance bind himself to free and relieve the second parties of all feu or blench duties in all time by past and to come so far as relating to the foresaid subjects and of all public burdens due and exigible for and furth of the same at or prior to the said date of entry And in the said conveyance the second parties shall be taken bound to pay and free and relieve the first party and his heirs and successors in all time to come from and after the said date of entry of a proportionate part as effeiring to the subjects to be disposed of teind duty and minister's stipend and valued rent and land tax payable for or effeiring to lands of which the said subjects form part as such proportions shall be fixed and determined by the legal advisers of the first party The other taxes effeiring to the subjects to be disposed for the year or periods current at the said date of entry shall be apportioned between the first and second parties and the second parties shall repay to the first party the proportion of said taxes applicable to the possession for the periods subsequent to the said date of entry.

Seventh. In the said conveyance the first party shall assign the writs but to the effect only of maintaining and defending the right of the second parties in the subjects to be disposed and for that purpose the first party will oblige himself and his foresaids to make the same to the extent of a legal progress forthcoming to the second parties at their expense on all necessary occasions when required on a receipt and obligation to redeliver the same within a reasonable time and under a suitable penalty.

Eighth. The first party shall not be bound to allow or sustain as a deduction from the foresaid sums or prices or any of them any rebate or drawback of interest thereon during the currency of any existing leases to tenants of the said subjects or any portion thereof or of the shootings or sporting rights thereof or thereupon nor to pay over to the second parties in respect of the said subjects to be acquired in terms hereof any part of the rent payable under the foresaid lease in favour of the said Hubert Arthur Cox it being agreed that the said Hubert Arthur Cox shall make payment of the said rent to the first party as heretofore until the foresaid break in the said shooting lease at the term of Whitsunday nineteen hundred and seventeen and that the first party shall give due notice to the said shooting

tenant of the termination at said term of his said lease quoad A.D. 1911.
the subjects acquired by the second parties and the second parties
shall be bound to free and relieve the first party of all competent
and legal claims at the instance of tenants of the said subjects
or any part thereof (including the said Hubert Arthur Cox
tenant of the foresaid shootings) for or in respect of or in con-
nection with the lands and shootings let to or occupied by them
respectively in so far as concerns the subjects acquired by the
second parties or for or in respect of any damage or loss which
may be caused or may arise by or in consequence of the execution
of the works contemplated by the Order.

Ninth. Nothing herein contained shall prejudice or affect the
agreements herein-before referred to entered into between the
predecessors of the first party and the second parties which shall
remain in full force so far as subsisting and capable of having
effect and section twenty of the Dundee Water Extension Act
1871 shall be held as extending to and applying mutatis
mutandis to the extended and enlarged Lintrathen Reservoir
after completion of the works contemplated by the Order as if
the said extension and enlargement of Lintrathen Reservoir had
formed part of the original reservoir as contemplated by that
section. It is agreed that the existing dam dyke on Inzion Burn
situated immediately above Inzion farm steading shall subject
to the proviso herein-after written be permitted to remain so
long as the first party and his successors have any right and
interest in said Lintrathen Reservoir in virtue of said section
twenty of the Dundee Water Extension Act 1871 and these
presents the first party and his foresaids being allowed all
facilities by the second parties for attending to the upkeep and
repair of the said dam dyke. Provided always that in the
event of the second parties finding it necessary or desirable to
remove the said dam they may do so on substituting a sufficient
barrier to prevent fish going up the said stream.

Tenth. Upon confirmation by Parliament this agreement shall be
binding upon the second parties and upon the said David
Lyulph Gore Wolseley Ogilvy Earl of Airlie and his heirs and
successors in the lands and estate of Lintrathen of which the
subjects before referred to form part.

Eleventh. The second parties agree and undertake to pay the
costs charges and expenses of and incidental to these presents
and in connection with or in respect to the said Provisional
Order and the expense and outlay incurred by the first party
in connection with the negotiations for the acquisition of the
subjects to be acquired in terms hereof including fees to

A.D. 1911.

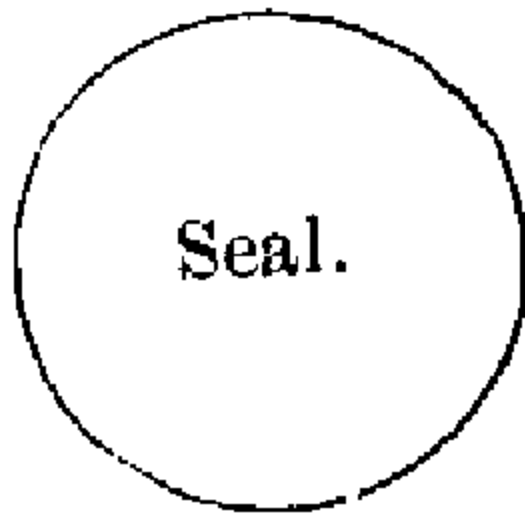
engineers or surveyors consulted or employed by or on behalf of the first party The second parties also agree and undertake to pay the whole expenses and outlay incurred by or on behalf of the first party of and incidental to the formal conveyance of the said subjects to the second parties including the expense and outlay incurred in connection with all necessary deeds of restriction of heritable securities or incumbrances affecting the said subjects and continuation of searches of incumbrances or otherwise.

Twelfth. This agreement is made subject to such alterations as may be made therein during the progress of the Order and to the approval of the Secretary for Scotland and Parliament and shall be scheduled to and confirmed by the Order In witness whereof these presents written on this and the six preceding pages by Thomas Barclay Logan clerk to Messrs. Mackenzie and Kermack Writers to the Signet Edinburgh are together with the plan referred to and signed and docketed as relative hereto and under the declaration that the word "the" in the twenty-fourth line of page first hereof was partly written on an erasure and that the word "above" in the thirteenth line of page fourth hereof was written on an erasure both before execution executed as follows viz. They are subscribed by James Urquhart Lord Provost Alexander Weir Paton bailie John Macarthur Soutar treasurer and James Perrie Robert Mudie Noble and George Anderson Johnston Commissioners being a quorum of the said Commissioners and by William Henry Blyth Martin clerk to the said Commissioners for and on behalf of the said Commissioners all as duly authorised to that effect and the common seal of the said Commissioners is hereto affixed all at Dundee on the sixth day of April in the year nineteen hundred and eleven before these witnesses James Morton Scott and James Norrie Campbell both clerks to the said William Henry Blyth Martin and are subscribed by the said David Lyulph Gore Wolseley Ogilvy Earl of Airlie and Arthur Jocelyn Charles Gore Earl of Arran both at Burnham-on-Crouch on the sixteenth day of the said month of April and year last mentioned before these witnesses Arthur Joseph Norris and Miss Constance Beatrice O'Neill (signing "C. O'Neill") both residing at White Hart Hotel Burnham-on-Crouch by the said George Leopold Bryan at Jenkinstown Park Kilkenny on the twenty-first day of the said month of April and year last mentioned before these witnesses John Tierney butler at Jenkinstown Park aforesaid and Bryan B Bellew gentleman residing at Beacon Lodge New Forest Hampshire and by the said Mabell Frances Elizabeth Countess of Airlie (signing "Mabell Airlie") at Manor House Cranborne Salisbury on the twenty-second day of the said month of April and year

last mentioned before these witnesses Colin Hermann Deane A.D. 1911.
gentleman residing at Gower Lodge Windsor and Robert Wallis
footman at Manor House Cranborne aforesaid. ---

A. J. NORRIS witness.
C. O'NEILL witness.
A. J. NORRIS witness.
C. O'NEILL witness.
JOHN TIERNEY witness.
BRYAN B. BELLEW witness.
COLIN H. DEANE witness.
ROBERT WALLIS witness.
J. M. SCOTT witness.
JAMES N. CAMPBELL witness.

AIRLIE.
ARRAN.
GEORGE L. BRYAN.
MABELL AIRLIE.
ROBERT M. NOBLE Commissioner.
JAMES PERRIE Commissioner.
JOHN M. SOUTAR Commissioner.
J. URQUHART Commissioner.
A. W. PATON Commissioner.
G. A. JOHNSTON Commissioner.
WM. H. BLYTH MARTIN Clerk.



Seal.

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